

25STCV00611 25STCV00611

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-07-07
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Case Number: 25STCV00611 Hearing Date: July 7, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

4350 NELLIS BLVD LLC,

Plaintiff,

vs.

BANJUL, INC., et al.,

Defendants.

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CASE NO.: 25STCV00611

[TENTATIVE] ORDER OVERRULING DEMURRER

Dept. 506

8:30 a.m.

July 7, 2026

On

January 10, 2025, Plaintiff 4350 Nellis Blvd LLC filed this action against Defendants Banjul Inc. and Canjun Sha for breach of lease.

On

August 19, 2025, Cross-Complainants Banjul Inc. and Canjun Sha filed a first amended cross-complaint ("FACC") against Cross-Defendant 4350 Nellis Blvd LLC, alleging (1) conversion, (2) breach of contract, (3) bad faith retention of security deposit, (4) fraud, and (5) civil theft.

On

September 29, 2025, Cross-Defendant filed a demurrer to the FACC.

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.)

Cross-Defendant

argues that the first cause of action for conversion is barred because Cross-Complainants lacks ownership of the security deposit.

(Demurrer at p. 5.) Cross-Defendant

relies on provisions in the lease (attached to the FACC) that permit it to retain the security deposit and apply it to the rental balance if Cross-Complainants defaulted on the lease. (Id. at pp. 5-7.) The remaining causes of action “are equally baseless for the reasons and arguments made in the prior section. (Id. at p. 7.)

Cross-Complainants

argue that the demurrer is procedurally defective for listing the wrong hearing date, failing to use relevant case law, failing to provide legal analysis, failing to “separately state each ground for a demurrer by putting the remaining three causes of action together in one paragraph.” (Opposition at pp. 2, 4; see id. at pp. 5-6.)

Although these points are true, the Court will not completely disregard the demurrer on these bases.

Cross-Complainants

also argue that the demurrer “makes an unpersuasive argument that because [Cross-Complainants] attached a copy of the commercial lease to the cross-complaint, that the facts are “undisputed.” (Opposition at p. 3.) Indeed, “a demurrer is not concerned with ‘undisputed facts’[;] a demurrer is only concerned with if the pleading states a cause of action.” (Ibid.) The Court can consider exhibits attached to a pleading, but as Cross-Complainants correctly observe, “analyzing a legal document, i.e., the lease, to weigh the facts is beyond the scope of a demurrer.” (Ibid.)

The

FACC alleges that Cross-Defendant did not return or apply the security deposit to the unpaid rent, in violation of the terms of the lease. (FACC ¶¶ 9-13, 21, 24, 27, 31-32, 37-38.) Even if it is “undisputed” that “[i] the subject lease expires on 1/31/2027; and [ii] Cross-Complainant unilaterally vacated the leased premises PRIOR TO the expiration date without Cross-Defendant’s consent and hereby breached the lease” (Demurrer at p. 7), the FACC sufficiently alleges that Cross-Defendant did not abide by the lease provisions upon which the demurrer also relies.

The

demurrer is OVERRULED.

Cross-Defendant

is ordered to file an answer within 10 days.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 7th day of July 2026

Hon. Thomas D. Long

Judge of the Superior

Court